

CV-25-010327 CAPITAL ONE NA vs ALCARAZ, ROBERTO - Plaintiff's Motion for Summary Judgment or in the Alternative Summary Adjudication – GRANTED, unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: After full consideration of the evidence, and the written submissions by the Plaintiff, the Court finds that Plaintiff's moving evidence establishes Defendant's indebtedness to Plaintiff in respect of Defendant's credit card issued to Defendant by Plaintiff ending in 1643, for a loan disbursed to Defendant by Plaintiff pursuant to the parties' agreement in respect of said credit card. The Court further finds that Defendant has defaulted in repayment on said credit card to Plaintiff.(Plaintiff's Separate Statement of Undisputed Material Facts Nos. 1-8. Plaintiff's Exhibits A-D; McBride v. Boughton, (2004) 123 Cal. App. 4th 37; (Vaughn v. Certified Life Ins. Co. of Cal., (1965) 238 Cal. App. 2d 177). The Court also finds the absence of a triable issue of material fact regarding Defendant's said indebtedness to Plaintiff. Therefore, Plaintiff is entitled to summary judgment in its favor herein (Civ. Proc. Code § 437(c);(Aguilar v. Atl. Richfield Co., (2001), 25 Cal. 4th 826, 850, as modified (July 11, 2001)). The Court GRANTS judgment in favor of Plaintiff, successor by merger to Discover Bank and against Defendant Roberto Alcaraz in the instant matter for the sum of \$5,310.64 plus costs of \$297.61 totaling \$5608.25

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